



Appeal Decision

Site visit made on 13 August 2026

by **K E Down MA(Oxon) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 28 August 2026

Appeal Ref: 6010273

118A Hempstead Road, Kings Langley, Hertfordshire, WD4 8AL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mrs Shermeen Akhtar against the decision of Dacorum Borough Council.
 - The application Ref is 26/00671/RET.
 - The development proposed is for a raised rear patio area including timber boundary fencing, balustrade and steps providing access to the garden with storage space beneath the patio.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. Since the application was determined and the appeal made, a revised National Planning Policy Framework (NPPF) has been published in August 2026. Although changes have been made to Green Belt policy, those policies that are relevant to this decision have not materially changed. I am therefore satisfied that no party will be prejudiced by my having regard to the latest version of the NPPF in reaching my decision.

Main Issues

3. The main issues are:
 - Whether the proposed development amounts to inappropriate development in the Green Belt, having regard to the NPPF, August 2026, and any relevant development plan policies;
 - The effect on the openness of the Green Belt;
 - The effect of the proposed development on the character and appearance of the host dwelling and the surrounding area;
 - The effect on the living conditions of occupiers of 118 and 120 Hempstead Road with respect to privacy;
 - If the proposed development amounts to inappropriate development in the Green Belt, whether the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations, so as to amount to the very special circumstances necessary to justify the development.

Reasons

Whether inappropriate development in the Green Belt

4. The appeal dwelling is a new, modest, detached chalet bungalow on a large, open plot at the edge of rough open grazing land. Its boundary with the rural area is marked by a wooden post and rail fence. A high, close boarded fence separates it from 118 Hempstead Road. The dwelling is the last property in a row of three on Hempstead Road, with undeveloped land to the east and south. Whilst there are dwellings on the opposite side of the street, the appeal dwelling and its neighbours are isolated from other development on the east side of the road and surrounded by open land. The appeal dwelling and its neighbours are set on land which slopes noticeably from the highway towards the rear.
5. The NPPF identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The government attaches great importance to Green Belts, the essential features of which are their openness and permanence. The NPPF goes on to state, in Policy GB6, that development in the Green Belt is inappropriate unless it falls within one of the categories set out in Policy GB7. Inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Policy GB7 sets out that the reuse, extension, alteration or replacement of an existing building is not inappropriate provided that, in the case of extensions, it will not result in a disproportionate increase in the size, compared to the original building. In the case of the appeal building, this is the dwelling as it was originally built. Policy CS5 of the Council's Core Strategy 2006-2031 (CS), adopted 2013, accords with the NPPF in applying national Green Belt policy.
6. The dwelling was permitted in 2022 and is understood to have replaced earlier buildings and structures. It appears to have been permitted with no rear or side access because, in 2025, a non-material amendment was allowed to provide timber steps from a side door down to garden level. The door and concrete, rather than wooden, steps have been provided. However, a raised side path, leading to a raised rear patio with access from the rear of the dwelling, has also been constructed, together with a wooden balustrade. This, including the storage area beneath with its own stepped access from the garden is the subject of the appeal.
7. The patio, which is rendered and painted cream to match the dwelling, projects from the rear elevation of the bungalow across its entire width, including the side path. Owing to the fall of the land, it rises well above natural ground levels and is surrounded by a slatted wooden balustrade which continues around the side of the building. Steps leading to a storage area beneath the patio are surrounded by similar slatted fencing. Overall, the development is a large addition to the bungalow. Although the depth of the patio is not disproportionate to that of the dwelling, its height and width, emphasised by the balustrade, result in it overwhelming the rear elevation of the modest host dwelling. I therefore find that the development as a whole results in a disproportionate increase in size, compared with the original building.
8. The appellant suggests that, assessed against the size of the original dwelling and in view of the modest increase in non-habitable floorspace and its single storey, low-profile, the proposed structure is not disproportionate. However, proportionality does not rely only on specific measurements or parameters. In this

case, owing to the noticeable fall in land levels and its scale, it appears as a large and incongruous addition.

9. I therefore conclude that the proposed development is inappropriate development in the Green Belt.

Openness of the Green Belt

10. As set out in the NPPF, openness is one of the essential characteristics of Green Belts. Openness has a spatial and visual aspect, and its assessment is a matter of planning judgement having regard to both. The proposed raised patio is clearly visible to the rear of the dwelling, including from the undeveloped area to the east and south, encroaching into a previously undeveloped space. It is prominent owing to its projection at height, pale finish which stands out from the darker tones of the surrounding garden, and the elevated wooden surround. Owing to the fall of the land, it occupies a significant volume behind and below the dwelling and, given its appearance and scale, it detracts from the spatial and visual openness of the area which lies within the Green Belt.
11. The appellant suggests that because the patio sits against the rear wall of the dwelling and much of the garden remains open, its effect is limited. However, I consider that the effect on both the spatial and visual openness of the Green Belt is readily apparent.
12. Accordingly, I conclude that the proposed development results in moderate harm to the openness of the Green Belt.

Character and appearance

13. The projecting rear patio which is wider than the bungalow and set above increasingly lower land appears visually bulky and as a dominant addition to the modest host dwelling. Its effect is exacerbated by its elevation, pale finish and by the slatted wooden balustrade which has limited visual permeability and therefore emphasises the scale of the overall structure and masks the rear elevation of the bungalow. Overall, the development amounts to a poorly designed and intrusive addition, that fails to appear sympathetic or subservient to the host dwelling.
14. The appellant suggests that the use of matching render and a timber balustrade utilise ordinary, recessive materials. However, in this rural edge location they result in a discordant transition between the built development and the open countryside. The appellant notes that the height of the balustrade is necessary for safety. Nevertheless, this structure is at odds with its open, elevated setting, resulting in a visually prominent and incongruous appearance. I accept that the development is not prominent in the street scene, but this does not compensate for its prominence in the landscape. Finally, the appellant suggests that the Council has already allowed a similar fencing material on the site boundary. However, I have no compelling evidence before me to support this and, at the time of my site visit, the boundary was marked by a visually permeable post and rail fence, sympathetic to its semi-rural location.
15. For these reasons, I conclude that the proposed development has a materially detrimental effect on the character and appearance of the host dwelling and the surrounding area. In consequence, it conflicts with CS Policies CS11 and CS12. Taken together and amongst other things, these expect new development to

respect and enhance the general character of the area and adjoining properties in terms of scale, height, bulk and materials.

Living conditions

16. The elevated patio and side path will enable direct views towards No 118 over its balustrade and the boundary fence which sits at original ground level. This means that anyone standing on the proposed patio or using the side path has an open view over the rear patio at No 118, resulting in a harmful loss of privacy to occupiers of that dwelling. This degree of direct overlooking is significantly greater than that which might ordinarily be expected between neighbouring dwellings. In the absence of the raised patio, views of No 118 would be screened by the intervening high, close boarded boundary fence. Owing to the distance of separation and intervening structures, there is no material overlooking of No 120.
17. The appellant suggests that the approved steps from the side door at the appeal dwelling already allow views to No 118, but the steps are located opposite the side wall of No 118 and so any view of the patio at No 118 from this point is not only fleeting, during entry/exit, but at an angle and more limited. Finally, the appellant suggests that a condition requiring the balustrade to be increased in height on the northern boundary will overcome any privacy issue but since, as identified above, this structure has a detrimental effect on the character and appearance of the area that will not provide an acceptable solution.
18. It is concluded that although there is no loss of privacy to No 120, the proposed development has a materially harmful effect on the living conditions of occupiers of 118 Hempstead Road with respect to privacy. In consequence, it conflicts with CS Policy CS12 which expects, amongst other things, that new development should avoid loss of privacy to adjoining properties.

Other considerations

19. The appellant has explained that there is a need to provide an accessible outside space for the occupier of the dwelling who is a registered disabled person and has mobility issues. Disability is a protected characteristic under the Public Sector Equality Duty (PSED) and in reaching my decision I have had regard to the three aims under the PSED. The raised patio has been designed to provide a level and accessible area immediately adjoining the dwelling. Without this the occupier would have difficulty accessing outside space at the dwelling. It is suggested that the patio represents a reasonable adjustment to enable the disabled occupier to use and enjoy outside amenity space at the property. A refusal of permission for the development would therefore reduce equality of access to private outside space.
20. However, it is not explained why the patio is located to the rear of the dwelling where the difference in levels between the dwelling and the ground is greatest, or why it needs to be the size it is. Since the appellant has not provided evidence to show that the patio is in the only feasible position and is no larger than necessary to serve its purpose, and because the need for the development is temporary, lasting only during the occupation of the dwelling by the current resident, I can only attach moderate weight to the occupier's need for accessible outside space as a consideration in favour of granting permission.

21. Conversely, I have found that the patio and associated structures are inappropriate development in the Green Belt and that in addition they result in moderate harm to the openness of the Green Belt. The NPPF makes clear that any harm to the Green Belt carries substantial weight. The development also results in noticeable harm to the character and appearance of the area and to the living conditions of neighbouring occupiers. This conflicts with CS Policies CS11 and CS12 and attracts significant weight against the development. Overall, these factors weigh heavily against granting permission for the development.
22. Accordingly, it is concluded that the occupier's need for accessible outside space carries only moderate weight and, in the final balance, this does not clearly outweigh the harm to the Green Belt through inappropriateness and loss of openness and the other identified harms. Consequently, the very special circumstances necessary to justify the development do not exist. The proposed development therefore conflicts with CS Policy CS5 and with national policy set out in Policies GB6 and GB7 of the NPPF, 2026.
23. I have had due regard to the Public Sector Equality Duty set out under the Equality Act 2010. The harm caused by the appeal development outweighs its benefits in terms of eliminating discrimination against persons with the protected characteristics of disability, advancing equality of opportunity for those persons and fostering good relations between them and others.

Conclusions

24. For the reasons set out above, I conclude that the appeal should be dismissed.

KE Down
INSPECTOR